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California Glock ban faces court challenge - Gun rights groups say it violates 2nd Amendment

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The National Rifle Association and other gun rights advocates have filed a lawsuit challenging Gov. Gavin Newsom's new ban on the sale of Glock-style pistols in California.

The lawsuit, Jaymes v. Bonta, was filed in the U.S. District Court for the Southern District of California on Oct. 13.

The plaintiffs argue California's ban on Glock-style handguns "violates the Second Amendment" and the "U.S. Supreme Court has held that 'common' arms cannot be banned, and that handguns cannot be banned."

The NRA, along with Firearms Policy Coalition, Second Amendment Foundation, Poway Weapons & Gear, and two NRA members, are listed as plaintiffs. The defendant in the lawsuit is Rob Bonta, in his official capacity as Attorney General of California.

"Gavin Newsom and his gang of progressive politicians in California are continuing their crusade against constitutional rights," John Commerford, NRA-ILA executive director, said in a statement. "Once again, they are attempting to violate landmark Supreme Court decisions and disarm law-abiding citizens by banning some of the most commonly owned handguns in America."

The NRA Institute for Legislative Action said AB 1127, which Newsom signed into law Oct. 10, was an attempt to "villainize certain categories of firearms and advance California's gun ban agenda."

While "Glock" was not mentioned in the legislation, the statement continues, "the clear target of this legislation is a complete ban on Glock platform firearms in California."

The law prohibits the sale of certain semiautomatic pistols that can be "easily converted by hand or with common household tools" into a machine gun. It does not refer to Glock handguns specifically, but it does fall into that category of firearms due to its easy-alteration capabilities by using a Glock switch, as reported by Fox 40.

These switches are already illegal under the National Firearms Act unless registered, with individuals found with an unregistered switch risking 10 years in federal prison and a $250,000 fine, even if it is not installed in a firearm, as reported by firearms dealer site Guns.com.

In 2024, as part of a public awareness campaign, the Bureau of Alcohol, Tobacco, Firearms, and Explosives' Los Angeles Field Division said it had recovered more than 31,000 machine gun conversion devices in the previous five years.

What is banned by the new law?

The law, which takes effect on July 1, 2026, bars firearms dealers from selling Glock-style handguns.

Specifically, the bill states licensed firearms dealers "shall not sell, offer for sale, exchange, give, transfer, or deliver any semiautomatic machine gun-convertible pistol."

It includes exemptions for law enforcement officials, and private-party sales of the weapons will remain legal.

Dealers will be permitted to sell Glock-style guns they received before July 1.

The bill's authors argue that, although the easy conversion of Glock-style handguns into machine guns has been known for decades, firearm manufacturers have failed to address it.

"While most handgun designs cannot be modified in this way, the select few manufacturers whose guns can be modified have refused to adjust their designs to prevent modification," according to a statement from the office of state Democratic Assembly member Jesse Gabriel.

"As parents and lawmakers, we refuse to stand idly by while our schools and communities are being threatened by illegal machine guns," he said. "This common-sense legislation will ensure that the gun industry is held accountable and that we are doing everything possible to protect our communities from mass shootings."

State Assembly member Catherine Stefani, a Democrat, agreed.

"Let's call this what it is: reckless greed from gun manufacturers who know their products can be turned into illegal machine guns," she said. "AB 1127 says enough is enough. If these companies won't redesign their weapons to protect our communities, California will hold them accountable."

Glock representatives could not immediately be reached for comment regarding AB 1127 being signed into law.

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